

SENATE No. 846

The Commonwealth of Massachusetts

PRESENTED BY:

John J. Cronin

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to extend enhanced Medicaid benefits to eligible hospitals.

PETITION OF:

NAME:

John J. Cronin

DISTRICT/ADDRESS:

Worcester and Middlesex

SENATE No. 846

By Mr. Cronin, a petition (accompanied by bill, Senate, No. 846) of John J. Cronin for legislation relative to the sustainability of high public payer community hospitals. Health Care Financing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 731 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to extend enhanced Medicaid benefits to eligible hospitals.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

- 1 (a) Notwithstanding any general or special law to the contrary, the secretary of health and
2 human services shall direct monthly payments to eligible hospitals in the form of enhanced
3 Medicaid payments, supplemental payments or other appropriate mechanism. Each payment
4 made to an eligible hospital shall equal 5 per cent of the eligible hospital's average monthly
5 Medicaid payments, as determined by the secretary, for inpatient and outpatient acute hospital
6 services for the preceding year or the most recent year for which data is available; provided,
7 however, that such enhanced Medicaid payments shall not be used in subsequent years by the
8 secretary to calculate an eligible hospital's average monthly payment; and provided further, that
9 such payments shall not offset existing Medicaid payments for which an eligible hospital may be

qualified to receive. In any fiscal year, the total sum of all payments made to eligible hospitals under this section shall not exceed \$35,000,000.

(b) The secretary may require as a condition of receiving payment any such reasonable condition of payment that the secretary determines necessary to ensure the availability, to the extent possible, of federal financial participation for the payments, and the secretary may incur expenses and the comptroller may certify amounts for payment in anticipation of expected receipt of federal financial participation for the payments.

(c) The executive office of health and human services may promulgate regulations as necessary to carry out this section.

(d) For the purposes of this section “eligible hospital” shall mean a non-profit or municipal acute care hospital licensed under section 51 of chapter 111 that received enhanced medicaid payments under section 63 of chapter 260 of the acts of 2020 in calendar years 2021 and 2022.